

INTA Practice Guides Report

Trademark Cancellations Guide

Colombia

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

Ian Raisbeck

I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks. This jurisdiction is not a member of the European Union; we have no European Union Trade Marks.
- "Cancellation" is not defined by legislation. The law has both a cancellation action and an annulment action available to a deciding body to "extinguish or expunge a trademark registration" upon the filing of the appropriate action. A cancellation action is filed before the Superintendence of Industry and Commerce (Colombian Trademark Office), while an annulment action is filed before the Administrative Tribunal for the first instance and the Council of State (Supreme Court for Administrative Matters) for a second instance. The cancellation action and the annulment action have different grounds for them to operate.
- Cancellation actions can be filed online at the following URL: <http://sipi.sic.gov.co/>. However, this is only for cancellation actions before the Superintendence of Industry and Commerce (Colombian Trademark Office). Annulment actions cannot be filed online, as they are brought before the Administrative Tribunal.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: the mark consists exclusively of the usual shape of the product or its containers, or of shapes or characteristics imposed by nature; the mark consists exclusively of shapes or other elements that provide a functional or technical advantage to the product or service to which it is applied; the mark consists of a color without it being limited by a specific shape; the mark reproduces, imitates, or contains a protected denomination of origin for the same or different products, when its use could cause a risk of confusion or association with the denomination, or could imply unjustly taking advantage of its notoriety; the mark contains a protected denomination of origin for wines and spirits; the mark reproduces or imitates signs denoting conformity with technical standards, except where the registration thereof is applied for by the national body responsible for standards and quality requirements in Andean Community Member Countries; the mark reproduces, imitates, or includes the indication of a plant species protected in an Andean Community Member Country, or any other country, where the mark is applied to goods or services relating to that

species or its use is likely to cause confusion or a mistaken association with that variety; the mark has become vulgarized since the time of registration. This ground is normally directed to an administrative or judicial cancellation action against a registered mark, the argument being that the mark has, through use, become vulgar (i.e., has lost its distinctiveness and become common or the generic term for one or more of the products or services for which it was registered). In other words, this ground requires that the mark was considered distinctive at some point and has since, through use in commerce without adequate policing by its owner, undergone "vulgarization."

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name; other relative grounds, i.e., grounds that are based on another party's proprietary rights: the mark is the advertising slogan of a third party; the mark is capable of affecting the identity or prestige of legal entities or natural persons; the mark is the name of indigenous, African American, or local communities, or of such denominations, words, letters, characters, or signs as are used to distinguish their products, services or methods of processing, or that constitute an expression of their culture or practice, unless the application is filed by the community itself or with its express consent.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: A mark is considered in use where the goods or services distinguished by it have been placed in circulation or are available on the market in any Andean Community Member Country under that mark, in the form and amounts that are normal, with due account being taken of the nature of the goods or services and the methods used for their marketing. A trademark shall also be considered in use if it distinguishes only goods that are intended for exportation from any Andean Community Member Country. However, via case law by the Andean Justice Tribunal (511-IP-2016, issued on June 14, 2018), effective use as indicated above is not an absolute requirement for showing use, since the law is not concerned with how well a trademarked product or service does in the market, so use may also be established by providing evidence of publicity, quotes sent, etc., without necessarily showing sales (placed in circulation) in the normal amounts based on the nature of the product.
- The definition of "use" provided above is derived both from statute, regulation or administrative rule and from case law: Article 166 of Andean Community Decision 486, as well as case law established by the Andean Justice Tribunal in Judicial Interpretation 511-IP-2016, issued on June 14, 2018.

- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: three years. However, it is important to take into consideration that when a cancellation action is filed, use must be shown by the defendant within the last three years, or a reasonable amount of time within the last three years; use during the last day of the three-year period would not constitute use within the last three years. As such, the mark should be used well in advance of the three-year limit to avoid cancellation.
- There are no consequences to the interruption of use unless a third party files a non-use cancellation action, in which case, if the interruption period covers the three years prior to the non-use cancellation action's being filed, the mark will be cancelled. If the interruption is for a less-than-three-year period, where use may be demonstrated for a reasonable time within the three years prior to the filing of the non-use cancellation action, there will be no consequences to said interruption.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).
- The advantages of filing an action based on multiple grounds are as follows: it will increase one's chances of success.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings before the Colombian Trademark Office (Superintendence of Industry and Commerce). However, annulment actions before the Administrative Tribunal may be modified after filing them in order to introduce further grounds for annulment. The deadline to modify an annulment action before the Administrative Tribunal is 10 working days after notification of the annulment action to the Colombian Trademark Office has taken place.

III. Forum — A. Forum

- The forum for cancellation proceedings varies depending on the grounds on which the proceedings are brought. Cancellation proceedings based on absolute grounds may be brought before the following court or other judicial tribunal: Administrative Tribunal (Tribunal Administrativo) is the Supreme Court for administrative law matters (versus civil law or criminal law), and it reviews cancellations except in the case of a mark's becoming generic after registration. This is not an administrative entity, but a court of law that deals with administrative law matters. Cancellation proceedings based on absolute grounds may be brought before the following administrative body: Superintendence of Industry and Commerce (Superintendencia de Industria y

Comercio), only when the mark has become generic after registration. Cancellation proceedings based on relative grounds may be brought before the following court or other judicial tribunal: Administrative Tribunal (Tribunal Administrativo). Cancellation proceedings based on relative grounds may be brought before the following administrative body: Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio), only when the ground is that the mark is similar to or the same as a well-known mark. Cancellation proceedings based on non-use grounds may be brought before the following administrative body: Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio).

- The administrative body/bodies listed above is/are not independent of the trademark registry. The Trademark Office is one of the divisions of the Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio). The Trademark Office is an administrative entity in charge of trademark prosecution and other matters, such as cancellation proceedings based on the two grounds noted above. However, the Superintendence of Industry and Commerce, of which the Trademark Office is a part, does have jurisdiction to see civil trademark infringement matters.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on relative grounds, the following parties have standing: any person. Legal interest is not required. The exception is where a cancellation (versus an annulment) is sought before the Superintendence of Industry and Commerce (Colombian Trademark Office) against a registered mark that generates a risk of confusion, association, dilution with, or takes unjust advantage of the prestige of, a well-known mark, in which case legal interest is required, i.e., the titleholder of the well-known mark is the party that has standing.
- For cancellations based on non-use grounds, the following parties have standing: any interested person. Legal interest is required. An "interested person" may request a cancellation based on non-use. "Interested" here is understood as having a commercial reason to obtain the cancellation, which may be as abstract as seeking to cancel the mark in order to subsequently apply for its registration for future use. Consequently, in practice, basically anyone can show legitimate "interest" in canceling a mark based on non-use. Moreover, the Trademark Office does not request the petitioner to state its legitimate interest.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who is a licensee of any conflicting trademark or other intellectual property right; someone who owns a company name that conflicts with the mark that is the subject of the trademark application; someone who is of the opinion that the mark was not registrable.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may be sought by a defendant. A cancellation action may not be brought before the same court as the infringement action. However, the court action may eventually be suspended temporarily (for up to two years) while the cancellation action is decided.

V. Representation — A. Qualifications

- The applicant is always required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings.
- The representative need not be domestic, i.e., with an office in the jurisdiction. Although the representative need not have an office in the jurisdiction, it is required that the representative be a registered Colombian attorney in full capacity.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: registered Colombian attorney in full capacity.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceeding before the Colombian Trademark Office in administrative matters. However, if the cancellation is sought before the Administrative Tribunal, and if the person issuing the power of attorney is outside Colombia, the power must be legalized up to the Colombian Consul, or by using the apostille system. If the person issuing the power of attorney is an juridical person, the power must be accompanied by a notarial certification that the company is in existence and that the person signing the power of attorney is duly authorized per a document seen by the Notary Public. This notarial certification must be legalized in the same manner as for the power of attorney, as noted above.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on absolute grounds, the deadline is: none. For proceedings based on relative grounds, the deadline is: five years after grant of cancellation (annulment actions) taken before the Council of State. However, for an administrative cancellation based on a prior well-known mark filed before the

Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio), there is no deadline for bringing the cancellation action. For proceedings based on non-use grounds, the deadline is: none. For proceedings based on grounds other than absolute, relative or non-use grounds, the deadline is: not applicable.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on absolute grounds, the statute of limitations or acquiescence provision is: none. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: five years after grant, except for a cancellation brought before the Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio) in which the basis is a prior well-known mark. For proceedings brought on non-use grounds, the statute of limitations or acquiescence provision is: none. For proceedings based on grounds other than absolute, relative or non-use grounds, the statute of limitations or acquiescence provision is: not applicable.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: for proceedings before the Administrative Tribunal, five years (first instance); for proceedings before the Superintendence of Industry and Commerce (Trademark Office), one year for a first instance decision and two years with the available appeal.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: for proceedings before the Administrative Tribunal, two years; for proceedings before the Superintendence of Industry and Commerce (Trademark Office), six months for a first instance decision and 18 months with the available appeal.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation. Official fees are applicable only to cancellations based on non-use, vulgarization, or well-known mark status before the Superintendence of Industry and Commerce (Trademark Office) and are non-refundable. However, cancellation proceedings before the Administrative Tribunal are subject to a penalty to cover court costs if the cancellation is withdrawn.
- If an application for cancellation is based on multiple grounds, no additional official fees are due. This applies to annulments before the Administrative Tribunal. For cancellations before the Trademark Office (Superintendence of Industry and Commerce), each basis has a specific fee (such as non-use, vulgarization,

well-known mark status) and each will be filed separately even if filed the same day.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: For cancellation proceedings before the Administrative Tribunal, all foreign public documents must be legalized via Colombian Consulate or the Apostille, which inherently means that notarization will have to occur; also, all special powers of attorney will require notarization. For cancellation proceedings before the Superintendence of Industry and Commerce (Trademark Office), no documents require notarization. The following documents must be legalized in cancellation proceedings, regardless of the grounds for cancellation: all foreign documents, only in cancellation proceedings before the Administrative Tribunal.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: if before the Administrative Tribunal, a full written suit requesting the cancellation, mentioning the specific grounds and including documentary evidence in support of the allegations, as well as a request for any evidence to be collected when the evidence gathering period is opened; a power of attorney is required. If before the Superintendence of Industry and Commerce (Trademark Office), a document requesting the cancellation, mentioning the specific ground and including documentary evidence supporting the allegations (except for non-use, where the defendant must provide evidence of use); a power of attorney is required. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: if before the Administrative Tribunal, a full written suit requesting the cancellation, mentioning the specific grounds and including documentary evidence in support of the allegations, as well as a request for any evidence to be collected when the evidence gathering period is opened; a power of attorney is required. If before the Superintendence of Industry and Commerce (Trademark Office), a document requesting the cancellation, mentioning the specific ground and including documentary evidence supporting the allegations (except for non-use, where the defendant must provide evidence of use); a power of attorney is required. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: official form for cancellation due to non-use and a power of attorney. The documentation and procedures to initiate cancellation proceedings based on grounds other than absolute, relative or non-use grounds are as follows: For cancellations based on vulgarization, a document requesting the cancellation, mentioning the specific ground and including documentary evidence supporting the allegations; a power of attorney is required.

XI. Discovery — A. Interrogatories

- Any party may request that any other party answer written questions, under oath ("Interrogatories"), only if the cancellation is based on the following grounds: absolute and relative grounds (Administrative Tribunal). However, Interrogatories are oral and should be carried out during the proceeding.
- The general rules concerning the timing, number and scope of Interrogatories are as follows: Interrogatories are limited to 20 questions, are oral during the proceeding, and are held before the judge. The General Procedure Code expressly limits the number of questions that a party in the case may ask one of the other parties in the

case rendering testimony to 20 questions (Article 202, paragraph 2). This limitation does not apply to a witness who is not a party in the case (nor does it apply to third parties rendering testimony). Therefore, one of the parties in the case, when rendering testimony, may be asked sets of up to 20 questions each, the first set by the party requesting testimony, and then by each of the other parties. The judge may ask questions at any point without limitation.

- If the requested party fails to provide answers to Interrogatories, in whole or in part, there is no procedure by which the requesting party can compel compliance. However, any assertive question that is not answered is presumed to be a confession of the facts to which said question refers.
- If the requested party fails to provide answers to Interrogatories, in whole or in part, the consequences are as follows: Any assertive question that is not answered is presumed to be a confession of the facts to which said question refers.
- The grounds on which a party may justify its refusal to respond to Interrogatories, in whole or in part, and the circumstances in which these grounds are applicable are as follows: if the response may imply criminal responsibility for the person rendering testimony or his/her family up to fourth degree of consanguinity or affinity (consanguinity of the spouse).
- Answers to Interrogatories may be used as evidence in the action.

XI. Discovery — B. Document Requests

- Any party may request that any other party produce documents in response to written document requests ("Document Requests").
- The general rules concerning the timing, number and scope of Document Requests are: The party requesting the documents shall express the facts that it is intending to prove and must state that the documents are in the possession of the person called to produce these documents. The party must also state the type of these documents and their relation to said facts. Requests for documents must be made when filing the cancellation action.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the procedure by which the requesting party can compel compliance is as follows: If a party fails to provide the documents ordered to be provided, the judge will evaluate the reasons provided. If they are found to be unsubstantiated, the judge will consider as true that which was intended to be proven by the party requesting the document, unless the answers to the interrogatories cannot be proven by confession, in which case the judge will consider the failure to produce documents a negative indication against the person failing to produce the documents. If the failure to produce a document comes from a third party, the judge will impose a fine of between 5 and 10 months of wages. However, no third party is compelled to produce documents that are its exclusive property and that have legal secrecy protection or if showing the documents would cause it damage.
- If the requested party fails to provide documents in response to Document Requests, in whole or in part, the consequences are as follows: If a party fails to provide the documents ordered to be provided, the judge will evaluate the reasons provided. If they are found to be unsubstantiated, the judge will consider to be true that which was intended to be proven by the party requesting the documents, unless the answers to the interrogatories cannot be proven by confession, in which case the judge will consider the failure to produce documents a negative indication against the person failing to produce the documents. If the failure to produce a document comes from a third party, the judge will impose a fine of between 5 and 10 months of wages. However, no third party is compelled to produce documents that are its exclusive

property and that have legal secrecy protection or if showing the documents would cause it damage.

- The grounds on which the requested party may justify its refusal to produce documents in response to Document Requests, in whole or in part, and the circumstances in which these grounds are applicable are as follows: Anyone may justify a refusal to respond to Document Requests if the documents ordered to be provided do not meet the legal requirements for such exhibition, which are that the party requesting the documents shall express the facts that it is intending to prove and must state that the documents are in the possession of the person called to produce these documents. The party must also state the type of these documents and their relation to said facts. Additionally, a third party may justify refusal if the documents are its exclusive property and have a legal secrecy protection or if exhibition of the documents will cause it damage.
- Documents obtained in response to Document Requests may be used as evidence in the action.

XI. Discovery — C. Depositions

- Any party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").
- The rules concerning the timing, location, subject and permitted scope of inquiry of a Deposition are as follows: Questions cannot induce the answer from the witness. The Deposition must be carried out during the proceeding and before the judge. All questions must be related to the subject at hand and must be directed to resolving the issue.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, there is no procedure by which the requesting party can compel compliance. However, the judge may fine the witness between two and five minimum monthly legal wages or impose an arrest of 1-10 days.
- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, the consequences are as follows: The judge may fine the witness between two and five minimum monthly legal wages or impose an arrest of 1-10 days.
- The grounds on which the requested party may justify its refusal to appear for or to answer questions in a Deposition, in whole or in part, and the circumstances in which these grounds are applicable are as follows: Only when being deposed, a party may refuse to answer questions if it may imply that a criminal responsibility will be derived therefrom to the depositee or his/her family up to the fourth degree of consanguinity or affinity (spouse's family).
- Answers provided during Depositions may be used as evidence in the action.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: ex officio or at the request of one of the parties, when the judge considers that the other party is in a more favorable position to provide the evidence or clarify the facts in question. In order to shift the burden of proof, the judge shall analyze the proximity to the evidence material, the person holding the evidence, special technical circumstances, because a party intervened directly in the factual basis of the litigation, or because of a state of defenselessness or disability or incapacity, or other similar circumstances.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: 60 working days counted from the date of notification, for non-use cancellation actions, and cancellations based on vulgarization. For all other cases, it is 30 working days from notification.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings except for those cancellation proceedings taking place before the Colombian Trademark Office (Superintendence of Industry and Commerce).
- The determination of whether oral hearings will take place is made by: Oral hearings are required by law, except as noted immediately above, but they are often replaced with a request from the Judge to file written documents.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: research showing that the mark consists exclusively of shapes or other elements that attribute a functional or technical advantage to the product or service to which they are applied; evidence showing that the mark is descriptive or generic, such as an advertisement for goods or services showing the mark describing the goods or services; evidence of existence of a protected appellation of origin; testimonies of experts, or any other type of evidence directed to showing the absolute ground.
- Evidence must be submitted to: the Administrative Tribunal.
- Evidence must be submitted by the following deadline: concurrently with the lawsuit if documents are in the possession of the plaintiff. All other evidence, such as inspections, testimonies, etc., must be requested with the lawsuit but will be collected during the evidence-gathering period.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: prior registration of the mark or slogan; use of the trade name, because exclusive right to a trade name is acquired through use; evidence showing that the mark is well known; evidence indicating that the applicant for the mark had knowledge of the existence and continuous use of the mark, slogan, or trade name prior to applying for the mark in Colombia, e.g., the applicant was a representative or distributor of the owner of the prior trademark; evidence of the existence of a copyright-protected work; name of indigenous, African American, or local communities.
- Evidence must be submitted to: the Administrative Tribunal.
- Evidence must be submitted by the following deadline: submitted or requested concurrently with the lawsuit.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: none.
- Evidence must be submitted to: not applicable.
- Evidence must be submitted by the following deadline: not applicable.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time for the applicant's submission of evidence are not possible.

XV. Evidence — G. Additional Evidence

- Additional evidence may not be submitted at a later stage in the cancellation proceedings unless the cancellation is before the Administrative Tribunal, in which case the annulment action may be modified up to 10 days after notification of the annulment action to the Colombian Trademark Office and can include additional evidence.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is mandatory.
- Evidence in reply must be submitted by the following deadline: 60 working days counted from the date of notification, for non-use cancellation actions and cancellations based on vulgarization. For all other cases, it is 30 working days from notification.
- Extensions of time for the respondent's submissions are not available.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site. other: The law does not limit the type of evidence that may be submitted in a cancellation proceeding based on non-use.
- In assessing whether "use has been made," sufficient use is demonstrated by: providing evidence that the goods or services distinguished by it have been placed in circulation or are available on the market under that trademark, in the form and amounts that are normal, due account being taken of the nature of the goods or services and the methods used for their marketing. Use may also be demonstrated if the products are exported from an Andean Community Member Country. Use may also be demonstrated, upon lack of actual use as noted above, by showing efforts on publicity, proposals sent, etc.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use; other: publicity and proposals sent to potential clients (efforts made on actual use).
- The respondent cannot demand that the petitioner provide additional particulars

relating to the petitioner's proffered evidence. In a cancellation proceeding, there is a reversal of burden of proof, so the respondent must file evidence in support of the use, while the petitioner does not have to file any evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body may consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: if by the continued use of the mark in an Andean Community Member Country by the titleholder or assignor the mark has acquired distinctiveness in respect of the products or services to which it is applied. No objective criteria have been established. The petitioner for the acquired distinctiveness will have to provide evidence in support of its petition (to declare the acquired distinctiveness).

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: a just cause is proven, such as force majeure or "Act of God," country import restrictions, state prohibition of the sale of the goods for reasons of health, or non-issuance of a government authorization for sale of the goods without liability of the applicant.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings based on particular grounds, as follows: In all cancellations seen before the Council of State (annulment actions), the Magistrate has the obligation to decide over attorney fees, based on the General Procedure Code, where the winning party is to recover attorney fees based on an official fee table. If no party is a clear winner, then generally the Magistrate will not award attorney fees to any party. In cancellations seen before the Superintendence of Industry and Commerce, the successful party is not entitled to recover attorney fees, regardless of the grounds for cancellation.
- The award of attorney fees in cancellation proceedings is: mandatory, as dictated by the grounds (see above). There is some discretion introduced within the mandatory analysis that the judge must perform regarding attorney fees. Fee shifting is the rule, where the amount awarded depends on how clearly the winning party has "won."

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of the grounds on which the proceedings were brought.
- A decision ordering cancellation of a mark takes effect: if before the Colombian Trademark Office, 10 working days after the decision, provided no appeal was filed; if before the Administrative Tribunal, immediately after notification of the decision,

unless the Administrative Tribunal provided a certain amount of time for the cancellation to be performed by the Colombian Trademark Office.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: For annulments before the Administrative Tribunal, the plaintiff (person requesting the annulment). The judge overseeing the annulment may assign court costs depending on the stage the annulment proceedings have reached. The farther along the proceedings have gone, the higher the probability of court costs being assigned to the plaintiff who has withdrawn the case and the higher the court costs being assigned. There are cases where no court costs have been assigned, generally when this happens early in the proceedings. For cancellations before the Superintendence of Industry and Commerce (Colombian Trademark Office), there are no costs associated with withdrawing cancellation applications.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed. Yes, both for cases before the Superintendence of Industry and Commerce (Trademark Office) and the Administrative Tribunal.
- Appeals of cancellation decisions must be brought before the following deadline: 10 working days.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: Appeals for cancellation grounds seen before the Colombian Trademark Office (Superintendence of Industry and Commerce) are seen by the Superintendent directly. Appeals for cancellation grounds seen by the Administrative Tribunal are seen by the Council of State (Supreme Court for Administrative Matters).

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal. In theory, new evidence may be submitted on appeal only if the evidence refers to the clarification of prior evidence timely submitted during the first instance decision or evidence related to the legality of the first instance decision. New evidence of fact may not be submitted as part of the appeal process. However, in cancellations before the Superintendence of Industry and Commerce, this entity has been accepting new evidence of fact during the appeal process.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: No official fees are required.

- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award. No monetary awards are issued with respect to cancellations.

XIX. Appeals — E. Scope

- An appeal is limited to points of law. However, because the Superintendence of Industry and Commerce has lately been accepting new evidence as part of the appeal, in practical terms it is a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- The appeal decision is final.
- There is no alternative procedure to an appeal. An annulment action before the Administrative Tribunal against the decisions issued by the Superintendence of Industry and Commerce (first instance and appeal) may be filed after the appeal has been decided, or rejected without being reviewed. However, the appeal must have been filed.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: Other: For cases before the Administrative Tribunal, where the cancellation is an annulment, the mark is considered as if it had never been registered. For cases before the Superintendence of Industry and Commerce (Trademark Office), the mark is considered as having been validly registered until the date of the decision to cancel the mark.
- If an applicant succeeds in obtaining cancellation on non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the decision to cancel the mark.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: The consequences of an annulment are that the past assignments are considered not to exist; the consequences of a cancellation are that the past assignments persist.
- The consequences for past licenses if a mark is cancelled are: The consequences of an annulment are that the past licenses are considered not to exist; the consequences of a cancellation are that the past licenses persist.
- The consequences for past contracts if a mark is cancelled are: The consequences

of an annulment are that the past contracts are considered not to exist; the consequences of a cancellation are that the past contracts persist.

XXI. Notification to TM Office — A. Notification to TM Office

- Following a decision to cancel a mark, the Trademark Office must be formally notified of the cancellation, regardless of the grounds on which the proceedings were brought. The following party has the responsibility to notify the Office: If the cancellation proceeding was brought before the Administrative Tribunal, the Administrative Tribunal issues an order to the Trademark Office to effectively cancel the mark. If the cancellation proceeding was brought before the Trademark Office, cancellation is automatic. The deadline to make the notification is: While there is no specific deadline, once the decision is final, the Administrative Tribunal will order the cancellation and notify the Trademark Office, and it may either provide a specific time limit to perform the cancellation or order that it be performed upon notification of the Trademark Office.
- The consequences of failing to meet the deadline to notify the Trademark Office are: There are no practical consequences, although the interested party may file a motion to push notification.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: only by a particular party to the action. If the applicant succeeds in obtaining the cancellation of the mark on non-use grounds, this party can refile the mark within three months of the cancellation with a preferential right.
- The time limits for refiling following the cancellation of a mark are the same, regardless of the grounds on which the proceedings were brought: three months (only if the applicant succeeds in obtaining the cancellation of the mark on non-use grounds).

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a sign that distinguishes the geographical origin or other common characteristics of goods or services of different enterprises using the mark under the control of the owner.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a sign that is intended to be applied to goods or services that meet certain established standards of quality or other characteristics certified by the owner of the mark.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

PERMISSIONS STATEMENT

Users are permitted to provide copies of individual jurisdiction profiles or other searches to clients in response to their queries for such information. A copyright notice will automatically print at the end of each search when you use your

browser's print function. Please note that this permission applies only to duplication or transmission of portions of the content of this Practice Guide and does not extend to duplication or transmission of the entire content by any means.

DISCLAIMER

All information provided by the International Trademark Association in this Practice Guide is provided as a source of general information on trademark and other intellectual property issues. In legal matters, no publication whether in written or electronic form can take the place of professional advice given with full knowledge of the specific circumstances of each case and proficiency in the laws of the relevant jurisdiction. While efforts have been made to ensure the accuracy of the information in this Practice Guide, it should not be treated as the basis for formulating business decisions without professional advice.

Copyright © 2007-2026 International Trademark Association